

KLAWSOME RENTAL — LIABILITY RELEASE & WAIVER

Klawesome Arcade · 42768 Grand River Ave, Suite C-140, Novi, MI 48375 · events@klawsomenovi.com

1. Acknowledgment of Risk

I, the undersigned ("Host"), acknowledge that the rental and use of claw machine equipment, related arcade equipment, and accessories provided by Klawesome LLC ("Klawesome") involves inherent risks. These risks include, but are not limited to: equipment tipping or falling; pinched fingers, hands, or limbs; trip-and-fall hazards from cords; minor electrical shock; property damage; and injury to guests or third parties resulting from use, misuse, or contact with the equipment.

2. Assumption of Responsibility

Host agrees to assume full responsibility for the supervision of all guests, attendees, and minors during the rental period. Host accepts that the equipment must remain on a level, indoor surface; must not be moved by Host or guests once placed by Klawesome; and must not be exposed to liquids, weather, tampering, or unauthorized service.

3. Release & Waiver of Liability

In consideration of being permitted to rent and use Klawesome equipment, Host, on behalf of themselves and their guests, heirs, executors, and assigns, hereby **releases, waives, discharges, and covenants not to sue** Klawesome LLC, its owners, members, employees, contractors, and agents (collectively, the "Released Parties") from any and all liability, claims, demands, actions, or causes of action arising out of or related to any loss, damage, injury, or death — including but not limited to equipment tipping or falling, electrocution or electric shock, lacerations, burns, allergic reactions, slip-and-fall, or any other harm — sustained by Host or any guest while the equipment is in Host's possession or at the event venue, whether caused by negligence of the Released Parties or otherwise, **to the fullest extent permitted by law.**

4. Indemnification

Host agrees to **indemnify, defend, and hold harmless** the Released Parties from any and all claims, lawsuits, damages, losses, costs, or expenses (including reasonable attorneys' fees) brought by any guest, attendee, venue, or third party arising out of or related to the rental, presence, or use of the equipment at Host's event.

5. Equipment Care & Damage

Host is responsible for the equipment from delivery until pickup. Host agrees to pay for any damage to the equipment caused by Host, guests, or the venue beyond normal wear and tear, including but not limited to broken glass, damage from spilled liquids, theft, or vandalism. Repair or replacement charges will be billed to the credit card on file.

6. Venue & Power Requirements

Host certifies that the venue has a flat, level indoor surface, a standard 110V grounded electrical outlet within 10 feet of the placement area, and clearance for delivery. Klawesome is not responsible for delays, damages, or refunds resulting from venue conditions misrepresented by Host.

7. Cancellation

The 25% booking deposit is non-refundable. Cancellations made more than 14 days before the event will receive a full refund of any amount paid above the deposit. Cancellations within 14 days are non-refundable.

8. Photo & Media Release

Host grants Klawesome permission to photograph the equipment at the event for use in marketing and social media. Klawesome will not photograph identifiable guests without separate consent.

9. Governing Law

This agreement is governed by the laws of the State of Michigan. Any dispute shall be resolved in the courts of Oakland County, Michigan.

10. Entire Agreement

This document constitutes the entire agreement between Host and Klawesome regarding liability for the rental and supersedes any prior oral or written representations.

I have read this Liability Release & Waiver in full, understand its terms, and sign it freely and voluntarily.

Host Name (printed): _____

Event Date: _____ Event Venue: _____

Signature: _____ Date: _____

Klawesome Representative: _____ Date: _____